

SECTION 2 - CONTRACT CLAUSES

52.252-02 – Clauses Incorporated by Reference (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address:

[Part 52 - Solicitation Provisions and Contract Clauses | Acquisition.GOV](#)

Clause	Title	Date
52.204-9	Personal Identity Verification of Contractor Personnel	January 2011
52.204-19	Incorporation by Reference of Representations and Certifications.	December 2014
52.204-90	Offeror Identification	April 2026
52-212-4	Terms and Conditions – Commercial Products and Commercial Services	April 2026
52.222-3	Convict Labor	April 2026
52.222-41	Service Contract Labor Standards	April 2026
52.222-50	Combating Trafficking in Persons	April 2026
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	May 2024
52.232-1	Payments	April 1984
52.232-18	Availability of Funds.	April 1984
52.232-25	Prompt Payment	January 2017
52.232-33	Payment by Electronic Funds Transfer-System for Award Management	October 2018
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	March 2023
52.243-1	Changes-Fixed-Price	April 2026
52.246-1	Contractor Inspection Requirements	April 1984
52.246-4	Inspection of Services-Fixed-Price.	August 1996

TRANSPORTATION ACQUISITION REGULATIONS (48 CFR CHAPTER) CLAUSES

TAR 1252.301 Solicitation provisions and contract clauses (matrix). The TAR matrix is not published in the CFR. It is available on the Acquisition.gov website via:

<https://www.acquisition.gov/TAR>

1252.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (NOV 2022)

1252.204-70 CONTACTOR PERSONNEL SECURITY & AGENCY ACCESS (NOV 2022)

1252.222-70 STRIKES OR PICKETING AFFECTING TIMEY COMPLETION OF THE CONTRACT (NOV 2022)

1252.222-71 STRIKES OR PICKETING AFFECTING ACCESS TO A DOT FACILITY (NOV 2022)

1252.223-71 ACCIDENT AND FIRE REPORTING (NOV 2022)

1252.228-72 RISK AND INDEMNITIES (NOV 2022)

1252.232-71 LIMITATION OF GOVERNMENT'S OBLIGATION (NOV 2022)

1252.237-70 QUALIFICATIONS OF CONTRACTOR EMPLOYEE (NOV 2022)

SECTION 3 – OTHER INFORMATION

Updated Invoicing Instructions

IMPORTANT INFORMATION FOR VENDORS/CONTRACTORS

DOT utilizes the Delphi eInvoicing web portal for processing invoices. Access to Delphi eInvoicing web portal is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform login.gov. For vendors submitting invoices or payment requests, they will be required to submit invoices via the Delphi eInvoicing web portal which is authenticated via www.login.gov.

Vendors must meet the following minimum requirements to submit invoices through the Delphi eInvoicing web-portal:

1. Vendors shall have electronic internet access to register in the U.S. General Services Administration's (GSA) *Login.gov* and to the Delphi eInvoicing web portal;
2. Once notified by their agency POC, system users shall register with and create an account with GSA *Login.gov*. System users will provide his/her personal email address and receive an email back to confirm. They will then create a password (Passwords must be at least 12 characters and should not include commonly used words or phrases) and input a telephone number and opt to receive either a personal call from *Login.gov* or text message with an authentication code;
3. Once the user is authenticated in *Login.gov*, he/she shall work with their agency POC to request access to the Delphi eInvoicing web portal. The POC will complete a Delphi eInvoicing web-portal User Access Request (UAR) to include the users full name, contact phone number, work e-mail address. Additionally, the agency POC will include the vendor name, purchase order (contract)

numbers (or supplier number) and agency doing business with to complete and electronically submit the UAR for processing;

4. Once the UAR is submitted, it will be electronically approved by the Access Control Officer (ACO) assigned to OA associated with the contract award or grant and then forwarded to the Delphi eInvoicing helpdesk to create the account. Once the account is created an e-mail will be generated to the user with instruction on accessing their Delphi eInvoicing web portal account. An e-mail will also be sent to the agency POC who initiated the UAR. Users are required to log in to iSupplier (DELPHI) every 45 days to keep it active.

**1252.232-70 Electronic Submission of Payment Requests. [(DEVIATION)(AUG 2025)]
As prescribed in 1232.7005, insert the following clause:**

Electronic Submission of Payment Requests (NOV 2022)

(a) Definitions. As used in this clause—

(1) Contract financing payment has the meaning given in FAR 32.001.

(2) Payment request means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices,” this clause, and the applicable Payment clause included in this contract.

(3) Electronic form means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.

(4) Invoice payment has the meaning given in FAR 32.001.

(b) **Electronic payment requests.** Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) **Processing system.** The Department of Transportation utilizes the DELPHI system for processing invoices. The DELPHI module for submitting invoices is called iSupplier. Access to DELPHI is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform login.gov. Vendors submitting invoices are required to submit invoices via iSupplier (DELPHI) and authenticated via www.login.gov.

(d) **Invoice requirements.** To receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in iSupplier (DELPHI) shall contain the following:

(1) Invoice number and invoice date.

- (2) Period of performance covered by invoice.
- (3) Contract number and title.
- (4) Task/Delivery Order number and title (if applicable).
- (5) Amount billed (by CLIN), current and cumulative.
- (6) Total (\$) of billing.
- (7) Cumulative total billed for all contract work to date.
- (8) Name, title, phone number, and mailing address of person to be contacted in the event of a defective invoice.
- (9) Travel. If the contract includes allowances for travel, all invoices which include charges pertaining to travel expenses will catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.
- (10) The following statement “The Contractor certifies that, by submitting this invoice to the Government, the supplies and/or services billed have been shipped, rendered, or delivered in accordance with instructions issued by the ordering officer; that they are reflected in the quantities and/or period of performance stated on the invoice; and that such supplies and/or services conform to the quantity and quality requirements specified in the applicable

contract, order, or blanket purchase agreement. Furthermore, pursuant to Executive Order 14173, Ending Illegal Discrimination And Restoring Merit-Based Opportunity, the Contractor certifies that it is in compliance with the Equal Protection principles of the Constitution and all applicable Federal anti-discrimination laws, and acknowledges that such compliance is material to the Government’s payment decision under the False Claims Act (31 U.S.C. § 3729(b)(4)). The Contractor also affirms that it does not operate any diversity, equity, and inclusion (DEI) initiatives that are inconsistent with the Equal Protection principles of the Constitution and the non-discrimination requirements of Federal law, as interpreted by the Supreme Court in *Students for Fair Admissions v. Harvard*, 600 U.S. 181 (2023).

(e) Payment system registration. All persons accessing the iSupplier (DELPHI) will be required to have their own unique user ID and password and be credentialed through login.gov.

(1) **Electronic authentication.** See www.login.gov for instructions.

(2) **To create a www.login.gov account**, the user will need a valid email address and a working phone number. The user will create a password and then www.login.gov will reply with an email confirming the email address.

(3) **iSupplier (DELPHI) registration instructions:** New users should navigate to: <http://einvoice.esc.gov> to establish an account. Users are required to log in to iSupplier (DELPHI) every 45 days to keep it active.

(4) **Training on DELPHI.** To facilitate use of DELPHI, comprehensive user information is available at <http://einvoice.esc.gov> .

(5) **Account Management.** Vendors are responsible to contact their assigned COR when their firm's points of contacts will no longer be submitting invoices, so they can be removed from the system.

(f) **Waivers.** For contractors/vendors who are unable to utilize DOT's DELPHI system, waivers may be considered by DOT on a case-by-case basis. Vendors should contact their Contracting Officer's Representative (COR) for procedures.

(g) **Exceptions and alternate payment procedures.** If, based on one of the circumstances set forth in 1232.7002(a) or (b), and the contracting officer directs that payment requests be made by mail, the contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request. If DELPHI is succeeded by later technology, the Contracting Officer will supply the Contractor with the latest applicable electronic invoicing instructions.

Payment: After deliverables are met, monthly invoices may be submitted. Reimbursement will be issued Prompt NET-30 days.

Point of Contact:

Contracting Officer: Please contact the Contracting Officer who signed the Purchase Order/Contract (located in blocks 31a and 31b of the Purchase Order/Contract) to obtain a Delphi eInvoicing web-portal User Access Request (UAR) form. This form will need to be filled out and returned to gain full access to the invoicing system.

Vendor Coordinator:

Primary: Felicia Eberling: Felicia.Eberling@dot.gov

Alternate: Henry Puppe: Henry.Puppe@dot.gov